

M/s Kundan Castings (Pvt.) Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 November 2015 · Writ-C No. 61565 of 2015 · **Writ dismissed; liberty to pursue Clause 6.5 against the bill.**

HEADNOTE

A consumer dissatisfied with the total demand in an electricity bill has a statutory alternative remedy under Clause 6.5 of the Electricity Supply Code, 2005. The writ challenging that bill is dismissed with liberty to invoke Clause 6.5.

FACTUAL SUMMARY

M/s Kundan Castings (Pvt.) Ltd. invoked the writ jurisdiction of the Allahabad High Court against the State of Uttar Pradesh and four others. The company was not satisfied with the total demand raised under an electricity bill dated 1 October 2015, for whatever reason. After hearing counsel for the parties, the Division Bench of Arun Tandon and Vipin Sinha, JJ. disposed of the petition on the same day without examining the merits of that bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — statutory alternative remedy

HOLDING

A consumer who is not satisfied with the total demand raised in an electricity bill has a statutory alternative remedy under Clause 6.5 of the Electricity Supply Code, 2005. The writ petition is dismissed with liberty to pursue that remedy. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer dissatisfied with the total demand in an electricity bill has a statutory alternative remedy under Clause 6.5 of the Electricity Supply Code, 2005. The writ challenging that bill is dismissed with liberty to invoke Clause 6.5. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND UNDER THE BILL DATED 01.10.2015

Writ court did not examine the bill on merits; relegated the consumer to Clause 6.5. ¶ 1